

25NNCV05583 25NNCV05583

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-26

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Case Number: 25NNCV05583 Hearing Date: August 26, 2026 Dept: B

Hon. Victor Avila, Dept B

Default Judgment

OSC Hearing Date: 8/26/26

CASE NO.: 25NNCV05583

CASE NAME: Equipment Depot California,
Inc. v. Skylark Enterprises, Inc., et al.

Moving Party: Plaintiff Equipment Depot
California, Inc.

Defaulting Party: Defendants Skylark
Enterprises, Inc., and Vardges Muradyan.

Ruling: GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is breach of contract action. On March 13, 2026, plaintiff Equipment Depot California, Inc. (Plaintiff) filed a Complaint against defendants Skylark Enterprises, Inc., and Vardges Muradyan (collectively, Defendants) alleging several causes of action including breach of contract and common counts.

On March 13 and March 28, 2026, default was entered against Defendants.

On August 6, 2026, Plaintiffs filed request for default judgment against Defendants.

TENTATIVE

Plaintiff has complied with requirements outlined below. The request for default judgment submitted on August 6, 2026, is GRANTED for the following reasons:

- Plaintiff justifies amount sought in principal damages, interest, and costs pursuant to contract between the parties, interest calculation, and cost memorandum. (Martinez Decl., ¶¶ 8, 11, 19-20; Exh. B; Exh. D; CIV-100, ¶ 7.)

- Plaintiff waives attorney's fees and costs on the JUD-100 form. Thus, Plaintiff will not be awarded attorney's fees or costs.

Accordingly,
Court judgment is entered in the amount of \$62,836.70.

CHECKLIST

1.

Service Of Summons And Complaint; And
Entry Of Default

a.

Personal

Service (C.C.P. §415.10)

¿ Yes ¿

No

i. Address of

Service:

b.

Substitute

Service (C.C.P. §415.20)

¿ Yes ¿ No

i. Address of

Service:

ii. Is there a showing of due diligence? [Three prior attempts]

¿ Yes ¿ No

c.

Mail (C.C.P. §415.30 / §415.40)

¿ Yes ¿ No

i. Address of Service:

d.

Publication (C.C.P. §415.50 / Gov. Code § 6064)

¿ Yes ¿ No

i. Is there an order approving service by publication?

¿ Yes ¿ No

1.

Vardges Muradyan

ii. Is there a showing of due diligence?

[Declaration regarding availability of Defendant]

¿ Yes ¿ No

e.

Secretary

of State (Corporations; C.C.P. §416.10 / Corporations

Code §1702)

i. Is there an order approving service on Secretary of
State?

¿ Yes ¿ No

1.

Skylark Enterprises, Inc.

ii. Is there a showing of due diligence?

[Declaration regarding availability of Defendant]

¿ Yes ¿ No

Defendant(s)

Date of filing of POS of summons & complaint

POS reflects service on what date

Date default entered

Skylark Enterprises, Inc.

4/2/26

3/26/26

5/13/26

Vardges Muradyan

4/29/26

4/16/26 (published)

5/28/26

2. Is

Entry of Default Void?

Did defendant(s) appear (answer or file other response) before default was entered?

[If

“Yes,” default is void. CCP 585(a)]

¿ Yes ¿ No

Has plaintiff amended the complaint after default was entered?

[If

“Yes,” the filing of the amended complaint generally reopens the default, which means that plaintiff will have to serve the amended summons and amended complaint on all defendants via personal service, substitute service, etc., wait for the period to respond to lapse, and then request entry of default on the amended complaint.]

¿ Yes ¿ No

In a personal injury or wrongful death case and/or plaintiff seeks punitive damages, did plaintiff serve statement of damages before default was entered?

[If

"No," default is void. CCP §473(d) / CCP §425.11(c)-(d); For personal injury cases, Plaintiff must submit a copy of the Statement of Damages served on Defendant. CRC 3.250(a)(20) but failure to do so does not void default.]

☐ Yes ☐ No ☐ Unclear ☐ Inapplicable

Did

Plaintiff File All Required Forms?

Did

plaintiff file a form CIV-100 to request court judgment?

[If "No," deny, use of CIV-100 is mandatory. CRC 3.1800(a)]

☐ Yes ☐

No

On

the CIV-100, did plaintiff complete item 2?

[If "No," deny, use of CIV-100, item 2 is mandatory. CRC 3.1800(a)]

☐ Yes ☐

No

If

defendant is an individual, did plaintiff complete declaration of nonmilitary status (CIV-100, item 8)?

[If "No," deny. This is required per CRC 3.1800(a)(5)]

☐ Yes ☐

No ☐ Inapplicable

Has

plaintiff submitted a proposed judgment (ideally on form JUD-100)?

[If "No," deny. This is required
per CRC 3.1800(a)(6)]

¿ Yes

¿

No

Summary of case provided – or other
declaration provided?

[Brief
Summary of Case. (CRC 3.1800(a)(1))]

¿ Yes ¿ No

i. Declaration
of Stuart A. Katz

Other Requirements

Has plaintiff dismissed all other parties
(including unnamed DOEs)?

[If
"No," deny. This is required per CRC 3.1800(a)(7)]

¿ Yes ¿ No

NAME OF DEFENDANT

DATE OF DISMISSAL

DOES 1 through 50

8/10/26

Is there pending motion to vacate default?

[Pause,
court has discretion whether to proceed; inquire judicial officer]

¿ Yes ¿ No

Principal

Damages

Has plaintiff filed a declaration under
penalty of perjury or other admissible evidence in support of amount of
damages sought?

[If
“No,” deny. This is required per CRC 3.1800(a)(2)]

¿
Yes ¿
No

Is the declaration by a percipient witness
with personal knowledge of the damages suffered or by an authorized
custodian?

[If “No,” deny. A defaulting
defendant admits only the well-pled facts concerning liability, not damages.
Plaintiff must still introduce admissible prima facie evidence of damages. (Johnson
v. Stanhiser (1999) 72 Cal.App.4th 357, 361.)

¿ Yes ¿ No

i. Declaration of Amy Martinez

Does the default judgment properly seek
a dollar amount that is equal to or less than the
amount sought in the complaint or in the statement of damages? (JUD-100)?

[Note: the “request for court
judgment” amount is just the principal amount sought in default and is not the
total amount which would include prejudgment interest, attorneys’ fees, and
costs. The total amount, considering these extra costs, may properly exceed the

demand of the complaint.]

☐ Yes ☐ No

Amount of principal damages in the statement of damages CIV-050 (total of all categories in items 1 and 2).

N/A

Amount of principal damages in complaint EXCLUDING attorney fees, interest, and costs.

\$54,565.00

Amount of principal damages in proposed judgment JUD-100 EXCLUDING attorney fees, interest, and costs (item 6(a)(1), NOT 6(a)(6))

\$54,565.00

Prejudgment

Interest

Does complaint pray for interest?

[If

"No," do not award interest]

☐ Yes ☐ No

b.

If complaint prays for interest, is
an interest calculation provided?

[If "No," do not award interest; CA Rules of Ct.,
rule 3.1800 subdivision (a)(3).]

☐ Yes ☐ No

Attorney's

Fees

Does complaint allege entitlement to attorney's fees?

☐ Yes ☐ No

b.

Does request for Court judgment request attorney's fees?

☐ Yes ☐ No

c. Are requested attorney's fees permitted pursuant to local rules?

[LASC Local Rule 3.214 subdivision (a).]

☐ Yes ☐

No ☐ Inapplicable

Costs

Does complaint pray for costs? ☐

Yes ☐ No

i. Has plaintiff provided a memorandum of costs properly verified on CIV-100, item 7?

[If

"No," you may grant default judgment but WITHOUT COSTS; Use of CIV-100, item 7, is mandatory for an award of costs. Cal Rules of Ct 3.1800(a).]

☐ Yes ☐ No

b.

Are all the requested costs allowable under CCP 1033.5?

[If "No," grant only allowable costs and deny as to nonconforming costs. (CCP §1033.5)]

¿ Yes ¿ No

Punitive
Damages

Does complaint pray for punitive damages?

[If

“No,” do not award punitive damages.]

¿ Yes

¿ No

ORDER

Plaintiff Equipment Depot California,
Inc.'s request for Default Judgment against Defendants Skylark Enterprises,
Inc., and Vardges Muradyan is GRANTED.

MOVING PARTY is to give notice.